

Sanjay Dadu v. Paschimanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 1 March 2023 · Writ - C No. 69361 of 2009 · **Petition disposed; objection to be decided under Supply Code.**

HEADNOTE

A section 126 / clause 8.1 provisional assessment notice is not defective where the inspection records unauthorized extraction and the notice states the assessment period and method of computation. A long-pending objection to that notice is to be decided under the U.P. Electricity Supply Code, 2005; the writ for quashing and refund is disposed with that direction.

FACTUAL SUMMARY

On 1 October 2009 a checking team found the petitioner drawing electricity by a direct connection from another person's tube-well. A provisional assessment notice of that date followed. He paid Rs.4,34,370 under it (later put as Rs.2 lakh assessment and Rs.3.40 lakh compounding) and filed this 2009 writ to quash the notice and inspection report and to recover those sums. An interim stay and restoration of supply were granted on 22 December 2009. His objection dated 16 November 2009 remained undecided until the 2023 hearing.

HOLDING-UNITS

INTERPLAY · UP-2005::8.1

provisional-assessment-notice

HOLDING

A provisional assessment notice under section 126 of the Electricity Act, 2003 and clause 8.1 of the U.P. Electricity Supply Code, 2005 is not defective where it rests on an inspection recording extraction of energy by a direct connection from another consumer's tube-well and it discloses the duration of assessment and the manner of computation. Where an objection to that notice remains pending, the writ court will not quash the notice or order refund, but will direct the licensee to decide the objection by following the procedure prescribed in the Supply Code, 2005. ¶ 3-6

PRINCIPLE TAGS

s126-procedural-strictness-notice-and-hearing A section 126 / clause 8.1 provisional assessment notice is not defective where the inspection records unauthorized extraction and the notice states the assessment period and method of computation. A long-pending objection to that notice is to be decided under the U.P.. ¶ 3-6

s135-arrest-safeguards-and-compounding-remedy A section 126 / clause 8.1 provisional assessment notice is not defective where the inspection records unauthorized extraction and the notice states the assessment period and method of computation. A long-pending objection to that notice is to be decided under the U.P.. ¶ 3-6

opportunity-before-final-assessment A section 126 / clause 8.1 provisional assessment notice is not defective where the inspection records unauthorized extraction and the notice states the assessment period and method of computation. A long-pending objection to that notice is to be decided under the U.P.. ¶ 3-6

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE THEFT ASSESSMENT, AND REFUND OF ASSESSMENT AND COMPOUNDING CHARGES ALREADY REALISED

Left to respondent no. 2 to decide the objection dated 16.11.2009 under the Supply Code, 2005. ¶ 5-6

